CONSTITUTIONAL AND ADMINISTRATIVE LAW - FINAL EXAMINATION 2021
EXAMINERS COMMENTS

Question 1

Some answers slavishly followed some sort of set template which entailed expounding on several extraneous issues (Eg locus standi, public/private). These were so obviously within the court's jurisdiction – going on for 1.5 pages wasted time. It also meant that the real issues were not dealt with. Rewriting administrative law case notes is not helpful as what is needed is to apply the case law to the fact pattern in your legal advice. Some answers were structured in a haphazard fashion, not following the issues as they flowed from the fact pattern. A failure to explain answers (ie conclusory assertions without justifications) were marked down. Decent answers would have covered the obvious issues like errors of fact or possible patent errors (dogs v boars as 'wildlife species'), whether the policy served a proper purpose (eg vaccination) and questions relating to abrogation of discretion and informal rule-making. In relation to consulting the Board of Parks, was action taken without power (illegality), irrational/bad faith, was discretion fettered, any prospect of a substantive legitimate expectation? Was the hearing before the inquiry committee fair (ability to present case), was there bias on the part of Noi? Any issue of irrationality or proportionality (as applied in Singapore - see Chng Suan Tze) in relation to the severity of the penalty.

Question 2:

This question focused on the mode of constitutional interpretation and whether the legal text should be treated as exhaustive (minority judgement, Hinds v The Queen) or whether there is an "unwritten" dimension. Clearly, Singapore courts have not treated the text as exhaustive, dating back to 1981 when 'fundamental rules of natural justice' were declared, and subsequent cases where unwritten constitutional principles eg rule of law, secularism, democracy, separation of powers were declared, possibly even a 'basic structure'. However, the courts clearly have rejected a "natural rights" approach (Yong 2015) to reading in liberties, though there are cases indicating implied constitutional rights exist (de Costa, Wong Souk Yee, Yong) - the particular method of implication should be discussed in terms of what the courts consider legitimate/illegitimate methods of reading the Constitution, how the "purpose" or "content' of an unwritten norm is derived, given the judicial antipathy towards being a 'mini-legislature' and 'living tree' constitutional construction.

Question 3:

This was a straightforward though not very popular question - perhaps the prospect of reading a set of hypothetical facts was a deterrent. Nonetheless, the issues are clear cut essentially involving article 15 and 12. Relevant issues include whether wearing a tudung is part of religious practice (must it be essential to the faith - Vijaya Kumar) and whether this can be legitimately restricted under article 15(4). The fact that the policy on tudungs is under "ongoing discussions" is relevant to how the courts assess the legitimacy of the scope of the restriction (Vijaya Kumar, Madan Mohan Singh) - what kind of balancing test might apply, and does this differ from the approach adopted in Colin Chan? Would the courts weigh in on whether they though the policy was necessary to public order or conducive to integration? Are Muslim women being discriminated against, because Sikh men can wear turbans? Is the fact that Sikh men cannot e.g. carry

kirpans relevant? What would the test under article 12 be, in respect of executive policy? This was not very well done in general, and some answers strayed off topic by going on about the MRHA, which is not a relevant issue here.

Question 4:

While question 2 focuses on method of interpretation, question 4 focuses on how the courts balance rights with competing rights, duties and public goods. What does a "generous" interpretation entail and what contextual factors might shape this. This question requires some distinction between approaches towards judicial review in the 20th century, as distinct from 21st century (broadly speaking). This is a general question which can implicate any of the Part IV liberties covered, but one would expect some discussion on the shifting discourse on the presumption of constitutionality (Saravanan, Jolovan Wham), the shift from a statist to a more 'communitarian' balancing approach (Vijaya Kumar), and greater solicitude for fundamental liberties and the need for more careful scrutiny (Lim Meng Suang, Syed Suhail etc). Some reflection on what 'constitutionalism' is (legal, political…) and how courts contribute to it (what does meaningfully mean?) is expected. The best answers were able to distinguish different approaches towards judicial review and demonstrated a familiarity with the latest decisions, which were the subject of extensive seminar discussions.

Question 5:

This question requires a close reading of the *Syed Suhail* case and how the approach towards article 12 and executive action differs from that in earlier cases (Eng Foong Ho, Howe Yoon Chong etc) where the more stringent 'intentional and arbitrary' discrimination test was adopted (and confined to economic policy cases cf: cases where fundamental liberties are implicated such as life) In Ramalingam, the court noted that the executive could make differentiations based on 'legitimate reasons.' Is this a basis for assessing the "legitimacy" of an executive decision - on what grounds? How would the court avoid acting as a second legislature? Does Syed Suhail have any implications for article 12 approaches towards the constitutionality of legislation? Should it (e.g. Lim Meng Suang HC judgment) How would the court avoid treating equality as an 'empty container' and reading it its preferred subjective views, without compromising its impartiality? Obviously, the better answers provided a close and detailed analysis of the case, showing how to contextualize it in the light of prior cases and to draw out possible implications for the constitutionality of legislation, while the poorer answers merely regurgitated everything they knew about art 12 and the reasonable classification test.

CONSTITUTIONAL AND ADMINISTRATIVE LAW FINAL EXAMINATION (2022)
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The best answer scripts identified at least 9-10 factual patterns that form the basis of the different grounds of review. These include issues of illegality, SLE, irrationality, and procedural impropriety. The best scripts are also those that clearly set out the relevant rules and case laws, and attempted to distinguish the facts of the Hypothetical with those of existing case laws, in order to advise and make a case for Norberto.

Many answer scripts seemed to follow a sort of pre-existing "answer template". However, in doing so, they merely described issues/grounds of review that were irrelevant to the Hypothetical. For instance, a number of scripts slavishly regurgitated jurisdictional review and amenability issues — there was nothing in the Hypothetical that could raise these grounds of review. Obvious issues were not adequately dealt with, for instance, the patent error in the decision to fine Norberto and fetter of discretion in refusing to hear out Norberto despite the fact that he had new information and evidence to offer. Many scripts also did not do enough to pick out and analyze SLE issues. Some of those that did merely applied Chiu Teng, without considering the significance of Ms Federdal's assurance about the Singapore government's policy regarding international athletes. Some spent excessive time and energy on standing or leave requirements, rather than getting to the meat of the issue quickly.

Another glaring problem was inadequate analysis — among the papers that have managed to clearly identify the relevant fact pattern and issue, there were many that merely stated the relevant fact pattern, cited the relevant case law, and offered an outcome/conclusion without any concrete analysis. It would have also been good to explain the rationale behind grounds of review, even if briefly e.g. why have a fair hearing rule, how does this vary with facts etc?

Question 2

This question requires firstly an understanding of how religious freedom and religious harmony inter-relate and a clear differentiation of both - is this about the appropriate balance between art 15(1) and (4) and does religious harmony fall within one of the 3 grounds of derogation? Can matters relating to religious harmony (as a public order interest) are easily separable from religious freedom - both may be implicated on the same set of facts.

Secondly, it warrants a discussion of whether religious questions should be handled by the courts or extra-judicially. Clearly, there is case law which deal or implicate art 15 (*Colin Chan, Nappalli, Vijaya Kumar,* sedition cases) and all involve exercises of state power and Part IV liberties - these relation to questions of "definition" (what is a religion/religious practice; can courts define religion?) and "content". How is "liberty and civil peace" best optimalised? Through a balance? What normative scale should be applied (*Chan, Vijaya Kumar etc*)

There are both extra-judicial mechanisms and processes/rituals which have been developed to deal with religious issues which involve art 15 eg 'aggressive proselytism' and the MRHA, role of the EP,

Presidential Council of Religious Harmony and the presence of an ouster clause (s18 MRHA). Also the informal regulation/public ritual / relational constitutionalism issues where the state takes a more background approach and lets two private actors sort things out; this appears to have been enacted to some extent under the CRI mechanism under s16 MRHA (2019 amendments). The best papers were able to grasp these points and also offered some reflections on how adversarial litigation does not conduce to promote reconciliation/relational welfare which serves 'religious harmony' as a shared value.

Poor scripts read like sociological essays, waxing lyrical about the role of religion and religious harmony in Singapore without reference to actual constitutional provisions.

Question 3

This question was generally well done with students quite able to discern the differences of approach between *Lim Meng Suang* and *Syed Suhail* at least as expounded by the Court of Appeal in *Tan Seng Kee* on the identification of purposes, the reasonableness of differentia/purposes, and the relationship between purposes and differentia .The best scripts evaluated these competing approaches in light of the judiciary's role under the separation of powers and/or as guardian of the rule of law

However, most students made two common omissions which the question required: (a) to explain whether and how these tests would apply in cases of legislation and executive action; and (b) how the use of these two tests might result in different (or similar) results by way of an example.

The better answers went further to critique the tests as characterised by the CA in *Tan Seng Kee*, and point out that what was actually said in *Syed Suhail* was not exactly what *Tan Seng Kee* said. Poor scripts garbled the descriptive analysis and/or evaluated the competing tests purely on the basis of free-standing moral arguments.

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Good scripts noted that courts do take a constitutional provision's text and context as their first point of departure in constitutional interpretation, but also occasionally go beyond that in referring to constitutional theories and extra-legal values when interpreting the constitution. The best scripts evaluated this position in light of the Constitution's role as supreme law within Singapore's legal system, and the court's role as defined by the separation of powers and the rule of law.

Poor scripts tended to be those that categorically affirmed that constitutional interpretation was either completely akin to or completely different from statutory interpretation. Also unsatisfactory were scripts which simply described the courts' approach to constitutional interpretation without evaluating its justifiability, or without discussion of the case-law.

Question 5

This was a popular question. However, many answers did not fully address the issues – especially regarding online speech. Many answers only dealt with POFMA and (1) either omitted defamation or (2) repeated their notes regarding defamation but not specifically defamation via online modalities.

Good answers addressed in a coherent – not piecemeal – manner the following issues. They started out by outlining the free speech enjoyment and protection in Singapore under the Art.14 regime and highlighting the 2 main types of harmful speech – (1) fake news (to society) and (2) defamation (to the individual and wider society in view of political figure defamation). They also systematically addressed how the 3 branches have sought to reduce/discourage harmful internet speech. This includes the examination of how fake news is dealt with by statute, e.g. POFMA, its long title and correction and stop provisions – how is this justifiably constitutional? As to how fake news is dealt with by the courts, the *SDP & TOC CA* case analysis should cover POFMA constitutionality, protection of fake news, assessing correction orders.

There would be broad coverage of the relevant legal controversies (under POFMA, the burden of proof, the doctrine of compelled speech and the congruency between "public interest" under s 4 with "public order" under art 14(2)(a);

Regarding the executive oversight, some discussion is necessary of how Minister Shanmugam introduced the bill re fake news – what were the reasons, terrorism, political interference, societal rifts; how does this impact enjoyment of Art.14?

On political figure defamation (common law), issues analyzed need to refer to the right and status of the speaker – blog, language, reputation, influence, reach, etc. and the impact on the injured party – political figure, damages, etc. The *Roy Ngerng* case is instructive, as is the obiter CA comments in *Review Publishing* (2009) specifically on how the internet may affect the qualified privilege test. Stronger answers assessed whether the current law was consistent with dominant free speech arguments eg truth, democracy.

Poor scripts contained glaring factual errors about POFMA or the law of defamation, and/or did not update their POFMA analysis in light of the Court of Appeal's decision in *Online Citizen*. The worst scripts made blanket acontextual arguments in favour of free speech or the public interest without going into any detail on POFMA or defamation.

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CAAL EXAM 2023 EXAMINERS COMMENTS

GENERAL OBSERVATIONS

The Hypothetical

- Good answers focused on the main issues of substantive and procedural review, explained them well by matching them closely with the fact-pattern, and substantiated with the correct case.
- Having built up solid legal advice, the strong answers also eschewed more minor points. Exposition of minor points is unneeded.
- Weak answers were those that identified the issues of substantive and procedural review but gave a cursory analysis and tacked on a case name.
- Weaker answers also had a 'checklist' analysis of all the admin law judicial review issues and commented whether or not the fact pattern 'checked' these boxes. This is not a good way to give legal advice – the client is relying on you to propose a solid solution, not a laundry list of major and minor issues.
- There were curious instances of substantive legitimate expectations being read in the fact-pattern. SLE was non-existent.
- In addition, there were also answers that wanted to seek judicial review because the policy was not 1azette and therefore ultra vires. Only formal rules such as secondary legislation need gazetting. Informal rules only need to come from the relevant public body and be clearly and publicly communicated.

Essays

- Many essays followed a certain 'mould', whether or not it answered the question. Please note that even if the content belongs to the topic you wish to address, answering the essay question needs a lot more curation, analysis, and direct writing.
- Please do not make big assertions or assumptions unless you have the evidence to prove your claims or conjectures.
- It was clear some students took the midterm assignment feedback to heart as the writing was much more concise, directly answered the question, and robustly substantiated (particularly the JD class).

Question 1

The best responses are those that clearly identified the correct set of facts for the different grounds of review; stated the applicable legal principles and the relevant cases; demonstrated an effort to analogize or distinguish the Hypo facts to existing case law; and reached a clear conclusion on the possible recourse for the client (Gerry).

Many scripts did not sufficiently identify the correct set of facts and grounds of review. There are at least 14 potential issues, but most scripts identified only 7-8 (correctly). Even then, the analysis was thin, lacking engagement with the nuances of case law.

A significant number of scripts merely regurgitated the facts of the Hypo and slavishly matched them to existing case law, without clearly engaging with or explaining what the specific legal principles (and exceptions) are. A legal advice must contain a clear explanation of the law and potential solutions based on the facts of the case. Some scripts had serious issues in stating the case law accurately. While a good number of scripts managed to recognize/draw analogies to the *Datafin* (and where relevant *Lawrence Khong*) case, a significant number of students failed to do so. Poorer scripts also demonstrated clear conceptual confusion with regard to the three types of bias (procedural impropriety). On irrationality — many scripts disregarded a thorough evaluation of this ground of review by meekly concluding that Singapore courts have set such a high standard of review that will be difficult to meet. This displays a lack of careful and considered analysis of the jurisprudence on irrationality. Similarly, many students slavishly concluded that there was an abrogation of power solely on the basis that the Minister had considered or listened to the Minister of Health and SBA Chairman. There was a lack of effort to evaluate the nuances in *Komoco.*

Another glaring miss is the evaluation of the Ministry's **policy** for illegality or irrationality.

Some scripts dealt with issues that are clearly irrelevant to the fact pattern in the Hypo, for eg, jurisdictional review (error of law/facts), substantive/procedural legal expectations, locus standi, and ouster clauses.

Question 2

This was not a popular question and was not generally well-done. Some students who attempted this question did not identify the parameters of what was being asked and wrote expansively about all the methods of maintaining religious harmony. The question is more specific and focused primarily on the definition of 'race' and 'religion.' For race, since the Wee Commission, there has been a refusal to define this comprehensively. The approach adopted in relation to e.g. the GRC art 39A and EP (Art 19B) is pragmatic, involving criteria like subjective self identification and the objective element of being accepted by that community as such. Rather than the courts, the matter goes to an advisory/unelected body and judicial review is precluded – why? This gives rise to problems e.g. why is Halimah Yacob, Indian Father, Malay mother, a Malay for election purposes? Could a Christian Malay be accepted, given the in principle non conflation of race and religion?

In relation to religion, the government has accepted some religions (eg MRH white paper) but the courts more importantly have grappled with the question – the best papers were able to discuss *Vijaya Kumar, Ng Chye Huay and Nappalli* and the judicial approaches adopted there, the problem of engaging in theology (*Nappalli,* compare with *Ebralinag*). This question rewards those who have actually read the case law and thought critically about it in depth.

Question 3

General

This is a question requiring an examination of:

a. the "range and scope" of Article 12(1);
b. what the reasonable classification test is;
c. whether the exclusive use of this test limits the scope of Article 12(1); and
d. whether such a limitation is justifiable.

'Range and Scope of Art 12(1)'

- Discussion of whether 'equal before the law' and 'equal protection of the law' means the same thing
- Whether they may justifiable be read to mean the same (*Lim Meng Suang*) and that the only test which the court should concern itself with is whether equal protection is accomplished through the deployment of the reasonable classification test.

Reasonable Classification Test

- Discuss the problem of classification and how a narrow stipulation of the legislative object can render the rational nexus part of the test perfunctory.
- Difficulty in sequencing of the test – how to determine what amounts to an intelligible differentia in the absence of legislative object.
- Application of the test in constitutional cases as opposed to administrative law purposes (*Eng Foong Hoe* vs *Howe Yoon Chong* and *Syed Suhail*).
- Whether legislative object can be challenged as being against the rule of law.

Question 4

This is not about the interpretation of existing rights (eg reasonable time and right to counsel) but about the finding/declaration of rights which do not appear in Part IV/any other part of the Constitution. It focuses on implied norms (Fundamental rules of natural justice, separation of powers, rule of law, secularism – *Ong Ah Chuan, Faisal, Tan Seet Eng, Chng, Nappalli, TOC v AG, Tan Seng Kee* etc) and rights implied not from theory or subjective politics (natural rights theories) but from the structure or provisions of the Constitution (right to vote) or from theory (basic structure, torture clause, *Yong 2010*). How do these escape from being a product of courts acting as a mini-legislature? Is there a right to a legal remedy (treatment of ouster clauses, rule of law), right to vote (but vaguely formulated eg *Yong 2015, Wong Souk Yee*)

Question 5

This question requires students to evaluate: (1) the scope of the protection of Article 9(1) and (2)n the interpretive methods that the Singapore courts have used to formulate the parameters of Article 9(1). The main focus ought to be on the *implications* of the courts' interpretive approach/method on the scope of "life or personal liberty" and the meaning of "in accordance with the law". A very good essay also ought to state clearly the student's thesis in response to the question posed (ie, implications and validity).

Many scripts suffer from four major issues. The first concerns the failure to assess Article 9(1) comprehensively, ie, interpretation of **both "life and personal liberty" and "in accordance with the law"**. Most scripts dealt with the former but not the latter — which is perplexing as the question clearly stated the need to discuss both aspects.

Second, many scripts merely described the outcomes of specific cases on the **scope** of "life and personal liberty" without carefully engaging with the interpretive approaches that shaped the court's reasoning and decision. In some scripts that did allude - albeit superficially - to the court's interpretive approaches/methods, there were clear errors in conceptual understanding. For instance, a number of scripts characterized the *Tan Seng Kee* decision as indicative of a strict textualist approach to interpreting the phrase "life and personal liberty". In that vein, these scripts went on to conclude that *Tan Seng Kee* was a "backward step" from the Court of Appeal, as it took a strict textualist approach as opposed to the purposive interpretation in *Yong Vui Kong.* This analysis and conclusion demonstrate the sheer failure in understanding the jurisprudence on Art 9(1) holistically.

Third, there was a glaring lack of understanding of what the question requires — evaluation of implications and validity. Most scripts dealt with one or the other; some failed to grasp the meaning of implications and/or validity, which led to off-tangent answers. Some even attempted to construct a normative essay by focusing only on whether the courts **should** have taken one path/approach over the other. At best, this question could be addressed as a concluding point, but students ought to engage with the implications and validity issues first and foremost. The implication question goes to scope of protection, while validity goes to the issue of whether the courts' decision, reasoning and interpretive methods are justified. In doing so, students ought to consider broader core concepts such as separation of powers, rule of law, and constitutional supremacy — on a handful of scripts did so effectively.

Fourth, there appears to be a lack of understanding of what the theories and methods of constitutional interpretation are. In thinking/writing about interpretation, many script merely referred to "narrow" or "expansive" interpretation. This is only part of the story and scratches the surface. The question (from the excerpt provided), clearly identifies a particular method of interpretation that the courts have adopted, and students ought to have picked this up in discussing "interpretation".

Examiners Comments (Constitutional and Administrative Law Examination, 2024)

Question 1

The hypothetical question required candidates to discuss two decisions: (1) the decision of the Singapore Prekka Chamber of Commerce ("SPCC") not to grant Grabbu a Certificate of Approval; and (2) the decision of the Minister of Trade to order the termination of Grabbu's operations. To fare decently, scripts had to identify both decisions and address them separately on their own terms. An accurate identification and an intelligent discussion of the relevant issues, rather than "correct" answers, was the benchmark. Most scripts met that.

On the SPCC's decision:

- Most recognised that there was a question to be asked about whether the SPCC's decision was amenable to judicial review, which primarily fell to be considered under the nature test.
- On substantive review, a fair amount of scripts addressed, typically under the rubric of relevancy review or irrationality, the fact that Oz Warren was wrongly assumed to have been a Prekka legislator (because he no longer held that office), and wrongly alleged to have committed the offence of corruption (because SPCC members are not "Singaporean public officers").
- On procedural review, almost all scripts recognised that the SPCC Panel's decisions could be challenged on grounds of judicial interference and bias. Most also recognised that Oz Warren was not given an opportunity to put Grabbu's case forward to the Panel. Several scripts also recognised, however, that there was a preliminary question about the SPCC Panel's decision's amenability to the fair hearing rule: this was an application case, but one might have argued that Grabbu's pecuniary interests turned on it.

On the Minister's decision:

- Most recognised that the Minister had made a jurisdictional/precedent error of fact: his power to suspend a business was contingent on a failure to report that a "foreign public officer" was a shareholder, but Oz Warren obviously does not fall within that definition because, as a matter of objective fact, he is not a sitting member of the Prekka legislature
- Most also recognised that the Minister has abrogated his discretion by deferring entirely and unquestioningly to the SPCC's decision in making his decision
- A fair amount of scripts pointed out that the Minister simply lacked the power to order Grabbu to terminate its operations; at most, he could order a one-year suspension

- Finally, almost all scripts contained at least a brief discussion of the finality clause – on whether it was an ouster clause, and if so whether it was valid

Good scripts touched on most of the main points above, and also might have pointed out, inter alia, that:

- The SPCC's policy of requiring companies to generate at least $50m in revenue might be said to be so manifestly disproportionate that it might be irrational (though of course there was room for debate and speculation).
- Yam Seng's communication of SPCC's policy to Oz Warren might give rise to a legitimate expectation, but the requisite test (even without the *Tan Seng Kee* gloss) would likely not be satisfied.
- While Oz Warren was not a "foreign public officer" because he was a former rather than current member of the Prekka legislature, the SPCC's concern that he might introduce foreign interference in Singaporean politics might still be rational and thus legitimate.
- The defence of necessity against an allegation of apparent bias was not available to a non-statutory body like the SPCC.
- Grabbu might wish to seek an mandatory order to compel the SPCC to grant it the Certificate, although the likelihood of obtaining it would be extremely low

Poorer scripts missed out several of the main points above, often because time was spent belabouring points which could have been quickly discussed (e.g., apparent bias) or were simply non-issues (e.g., the amenability of the Minister's decision to judicial review). The poorest scripts typically failed to address either one of the two decisions in any significant detail, usually because they conflated the two decisions or because candidates evidently ran out of time.

Question 2

This was an invitation to consider the balancing (or no balancing methodologies) in 20th century decisions like Colin Chan (1994) with 21st century cases eg Vijaya Kumar (2015) and more general approaches to Part IV (more generous). Issues should include the theory of public order (conflation with national security), the 'reasonableness' approach in Vijaya as distinct from categorical public order trumps in Chan, Nappali and the identification of religious processions as 'higher order public order considerations' (is there a typology of "order" interest as much as a rights typology, in terms of weightage?). The definition of what a religious practice is also implicates the degree of protection afforded art 15. The best papers addressed (i) the issue of balancing (ii) the definition of religious practice and what is covered by art 15 and (iii) the content of art 15 eg would it include conscientious objection in light of the executive policy on national service and its view that human

rights do no cover a right to conscientious objection (though one does exist under the Termination of Pregnancy Act)? Most answers to this less popular question were reasonably decent and able to analyse the main cases adequately.

Question 3

This hypothetical question deals squarely with the issues of locus standi for constitutional claims and the application of Article 12 to legislation. There were relatively few attempts at this question, but the examiners found that those who attempted the question did well. Issue identification was straightforward as the question laid that out explicitly. Students attempting this question demonstrated a firm grasp of the case law on locus standi and the interpretation of Order 24 of the Rules of Court, and also the court's interpretation and application of Article 12 in *Lim Meng Suang*, *Tan Seng Kee*, and *Syed Suhail bin Syed Zin.* The best answers also offered critiques of the apparently conflicting tests in these cases as well as in the manner in which the Singapore courts have narrowed the application of locus standi despite the wide ambit accorded under Order 24.

This question sought to test the students on their knowledge and application of the law on locus standi, the scope of article 9, specifically on whether the right to life and personal liberty could be extended to privacy and enjoyment of property, the scope of article 12, including the question of which test to apply to in relation to executive action. It is actually one of the easier questions as it is a straight up application question. Students who attempted this question did well. However, the take-up rate was low as most students may not have been prepared for a hypothetical, which is a mistake.

Question 4

The best papers (A band) for this question addressed these three key aspects:

(1) The different methods of constitutional interpretation that have been utilized by Singapore courts (ie, describing and explaining what those methods are and how they are operationalized in judicial decision-making.
(2) The implications of those methods of interpretation in relation to the concepts of judicial power, constitutional supremacy, and separation of powers. Here, students must also be able to conceptualize these principles clearly, including demonstrating the link/relationship among those principles.
(3) Justify analysis of (1) and (2) by reference to specific case laws, including those (but not necessarily limited to) that implicate fundamental liberties.

A vast majority of papers failed to engage with (1); rather, the papers were geared towards a general description or critique of the courts' interpretation of specific fundamental liberties provisions and then concluding that those approaches were narrow or expansive, and/or "deferential" or "activist". Explaining case laws and the jurisprudence on specific fundamental liberties (ie, the issue of scope) only covers part of the Question.

Some papers were too narrowly focused on Article 9, Article 12, or Article 15, and there were some that read like prepared model answers on specific rights issues. This indicates to the examiners the lack of effort in understanding, unpacking, and responding to the Question. This Question requires students to examine the issue of constitutional interpretation, and this is not limited only to fundamental liberties questions. Cases like *Tan Cheng Bock, Vellama,* and *Wong Souk Yee* are equally important. Of course, students are not expected to evaluate every single fundamental liberties issue (or every single case), but you have to be judicious — you are expected to engage with specific constitutional interpretation methods and provide 1-2 illustrative examples.

Most papers provided poor conceptualization of key constitutional principles implicated in the Question (judicial power, constitutional supremacy, and separation of powers). Some papers quite impressively attempted to refer to the three different conceptualizations of separation of powers in the Singapore jurisprudence (autonomy, deference, control), but they failed to explain what these conceptions mean. In short, it is not enough to "drop" or refer to concepts throughout the response — you must demonstrate clearly how the interpretive methods invoked by the courts strengthened or weakened constitutional supremacy, separation of powers etc.

Question 5

Many attempted this question but there were few scripts that substantively addressed the 3 issues required.

All answers must contain a thesis statement critically discussing whether (or to what extent) they agree/disagree with the quotation. Answers should critically engage with how the extent to which Art. 14(1) is enjoyed subject to Art. 14(2) limitations in the following scenarios:
(1) whether falsehood is protected by the law using POFMA and The Online Citizen Pte Ltd v Attorney-General and another appeal and other matters [2021] SGCA 96 to substantiate,
(2) contempt of court – i.e. the Administration of Justice (Protection) Act and the 'risk' test in Wham Kwok Han Jolovan v Attorney-General and other appeals [2020] SGCA 16, and
(3) defamation of politicians.

There were answers that dealt solely with defamation or POFMA, or a combination of defamation and POFMA. Papers that omitted discussion of contempt of court could not be

considered full answers. Additionally, answers that repeated study notes without using the content and law to answer the question directly were comparatively weaker.

EXAMINERS COMMENTS FINAL WRITTEN EXAM 2025

Q1 (Admin Law)

This question featured three executive decisions which might be subject to review on various grounds.

The first decision was Minister's declaration of Gamestonk a restricted entity. Here, relevant issues included whether the Minister's departure from the MTI Circular amounted to a breach of a legitimate expectation (*Chiu Teng* cf *Tan Seng Kee*), and whether the Minister acted for proper purposes in targeting the board game industry, and whether the existence of a potential improper purpose (preventing "political instability") made a difference (*cf World Development Movement*). Also relevant was the fact that the Minister fined Gamestonk, which is something he simply had no power to do under the 2015 Act.

The second decision was ACRA's rejection of Gamestonk's appeal against the Minister's declaration. Here, relevant issues included whether ACRA's decision could be amenable to procedural review (this was probably a forfeiture case, since the Minister's declaration limits Gamestonk's legal rights to make payments); whether the ACRA panel deprived Gamestonk of its right to be heard (Bob Ong's "persistent questioning" arguably amounting to excessive intervention, as in *Chiam See Tong*; and whether the ACRA panel's decision was tainted by apparent bias (Bob Ong probably being the politician embarrassed by Gamestonk's *North Coast Plan* game).

The third decision was MTI Perm Sec's refusal to authorise Gamestonk's two payments. Relevant issues included whether the refusal to authorise the first payment was subject to precedent fact review (since the seller was outside Singapore, cf s 5 of the 2015 Act); whether the refusal to authorise the second payment had any legal effect at all (since it was below $100,000, cf s 4 of the 2015 Act); and whether the MTI Perm Sec had fettered his discretion in consulting Bob Ong (probably, since his decisions were based "on the advice" of Ong, *cf Komoco*). Also relevant here was the question of whether s 7 of the 2015 Act could validly oust judicial review of these decisions (*cf Nagaenthran*).

Good scripts tackled all three decisions, spotting and discussing most of the issues above.

The best scripts discussed all the issues above, and may also have discussed:

- In relation to the first decision, whether the *Tan Seng Kee*-type extraordinary circumstances were at play here (probably not, since promise was only by MTI and not Parliament, and since life and liberty were not at stake)
- In relation to the second decision, whether ACRA could avail itself of the principle of necessity (no, because it was not necessary for it to empanel Bob Ong).
- In relation to the third decision, whether the Perm Sec could avail himself of the *Carltona* principle (yes); whether Gamestonk could get a mandatory order to compel the authorisation of its first payment (probably yes, since s 5 says that Minister "may only refuse" authorisation if precedent facts met, and here they were not met because seller was inside Singapore, so only one correct decision for the Minister to make; see *CBB*)

Weaker scripts missed out one of the three decisions or a fair amount of the relevant issues. They may also have suffered from one or more of the following errors:

- Spending too much time on irrelevant discussions of standing and amenability (both were obviously not issues here).
- Viewing the MTI Circular as subsidiary legislation then arguing that it was invalid because it was not gazetted. The Circular was a policy, stating how future decisions would be made, not itself a rule affecting substantive rights and obligations.
- Reviewing the rationality of the MTI circular; this was plainly a non-starter
- Reviewing the first decision (Minister's declaration) of grounds that the Minister

did not satisfy precedent facts in the MTI Circular – the Circular was a policy, not itself a power-conferring provision, so there is no strict need for the Minister to

follow it (quite the opposite, the Minister must depart in exceptional circumstances; see *Komoco*)

The poorest scripts missed most of the relevant issues, and/or just regurgitated

Generally, this hypothesis was quite well done. The best answers were those that identified each issue clearly and moved straight to the points they argued. The inferior answers were those that adhered rigidly to a pre-determined template. In these cases, students dealt unnecessarily with "issues" like amenability and locus standi, which were not in issue whatsoever. There is a tendency for students to throw in every conceivable argument just to cover the bases. This is a poor strategy and dilutes the importance of the key points that ought to have been made. Tangential arguments should be discarded, and the focus should be on the most important and immediate issues. Some students, for example, spent considerable time on discerning whether the Minister's Circular was subsidiary legislation. What is the point of this? Gamestock would want to hold the Minister to what was declared in the Circular on the basis of substantive legitimate expectation. If the circular was indeed tantamount to subsidiary legislation and it was not published, then the Minister cannot be held to its contents. Because most students deploy a ready-made template, this question also tends to be answered according to the sequence of the template, which makes no sense. A good lawyer will prioritise the most straightforward and uncontentious issues (low-hanging fruit). It would thus have been sensible to get the fine and refusal quashed before dealing with the other
issues.

Qn 2
This question was moderately well done. Most students understood it to be about religious freedom under Art 15 and followed the sequence of the quotation in critically analysing the case law. There was a tendency to pile case upon case in elucidating or challenging the quote but it often lacked critical depth in that they did not explain how the case law was or was not deleterious to "recognised constitutional principles".

Q2 (Art 15)

This question required an evaluation of the courts' approach on the interpretation of religion under Art 15(1), the interpretation of restrictions thereon like public order under Art 15(4) and the test for enforcement (i.e., categorical or balancing).

Good essays began with a clear thesis, set out a brief preliminary discussion on the court's role in constitutional interpretation, before engaging with all three issues and the relevant authorities: *Nappalli* (restrictive interpretation of religion, expansive interpretation of restrictions, categorical enforcement), *Colin Chan* (broader interpretation of religion, categorical enforcement), and *Vijaya Kumar* (broader interpretation of religion, quasi-balancing enforcement).

Poorer essays either neglected to discuss one or more of the issues, or stopped at *Nappalli/Colin Chan*.

Weakest essays had no structure and read like info-dumps on everything from the definition of secularism to random details about the MRHA with no consistent argument.

Qn 3
There were very few attempts for this question and most of them were abysmally done. Only one student understood the gist of the question to involve judicial independence and Art 12.

[Only one candidate attempted this]

Qn 4
Understandably, students focused on Art 9(1) and 9(3) and in that regard, it was fairly well done.

This question required an evaluation of whether courts have interpreted Articles 9(1) and 9(3) in a justifiable manner. key issues were the definition of "life", "liberty", "in accordance with law" and the fundamental rules of natural justice, the time within which the right to counsel must be granted, and the existence or otherwise of a right to be informed of one's right to counsel.

Good essays discussed the courts' current positions on all these issues, and evaluated them in line with some clearly articulated and justified theory of constitutional interpretation.

Poorer essays remained descriptive, or lacked a discussion of some of the key issues.

The weakest essays contained abstract discussions of constitutional interpretation without engaging with many (or any) of the key issues.

Qn 5

This hypothetical was averagely well done, though there was a tendency for students to adopt some kind of pre-determined template in answering the question. The leads to rather contrived answers and the tendency to throw everything but the kitchen sink into the equation. There is a need to prioritise which questions need answering first and how to secure the quick technical knockouts before dealing with the more complex issues.

This question required an application of the *Jolovan Wham* framework to the provisions of POFMA on the issuance of Stop Communication Directions (SCDs). Relevant issues included (1) whether false speech is protected under Art 14(1)(a); (2) whether SCDs restrict speech; (3) whether SCDs coupled with Correction Directions (CDs) amount to compelled speech; (4) whether POFMA's provisions on SCD were considered by Parliament to be necessary or expedient in the interests of public order; and (5) whether there is an objective nexus between them and public order.

Good scripts recognised that, while *TOC v AG* was the starting point, the analysis should differ for issues (2) and (3) (SCDs restrict speech because unlike CDs they actually prevent the target statement's continued existence, and once the original statement is gone the CD arguably amounts to compelled speech), and might differ for (5) (if balancing is involved at this stage, the fact that the statement-maker is entirely restricted from speaking by the SCD may tip the balance against constitutionality).

Weaker scripts neglected more than one of the above issues and/or simply rehashed the reasoning in *TOC v AG* without discussing the new considerations raised by SCDs as compared to CDs.

The poorest scripts engaged in abstract and irrelevant discussions of Art 14 and/or waxed lyrical on irrelevant matters like *Reynolds Privilege*.